Draft dated ~~18~~20 March 2026

LEASE AGREEMENT

dated [ ]

between

HABECO PROTECTION SP. Z O.O.
as the Landlord

and

HABECO SP. Z O.O.
as the Tenant

LEASE AGREEMENT

This lease ("**Agreement**") is made between:

1. **Habeco sp. z o.o.** with its registered office in Tczew, at Piaskowa 3 Street, 83-110 Tczew, registered in the register of entrepreneurs maintained by the District Court Gdańsk – Północ in Gdańsk, VII Commercial Division of National Court Register under KRS number 0001195094, NIP number 5932650207, REGON number 542836813, share capital PLN 5,000.00 ("**Tenant**"), represented by Axel Hallgren and Niklas Natt och Dag – members of the Management Board, and

2. **Habeco Protection sp. z o.o.** with its registered office in Tczew, at Piaskowa 3 Street, 83-110 Tczew, registered in the register of entrepreneurs maintained by the District Court Gdańsk – Północ in Gdańsk, VII Commercial Division of National Court Register under KRS number 0000019124, NIP number 5932290967, REGON number 192538733, share capital PLN 4,489,500.00 ("**Landlord**"), represented by Jacob Hallgren and Lars Hallgren – members of the Management Board

The Landlord and the Tenant are hereinafter referred to as the "**Party**" and jointly as the "**Parties**".

1. Definitions and expressions

For the purpose of this Lease, unless the context requires otherwise, the definitions and expressions mentioned below shall have the following meaning:

1.1 "**Alterations**" mean any works, alterations, installations, finishes and fixtures of a temporary and/or permanent nature made by the Tenant in the Lease Subject.

1.2 "**Annual Reconciliation**" is defined in Section 5.5.

1.3 "**Buildings**" means the buildings located on the Property comprising a production and warehouse hall as well as social and office building.

1.4 **"Business Day"** means any day from Monday to Friday inclusive, excluding national holidays and free days determined by the provisions of Polish law.

1.5 **"Commencement Date"** means the date of execution of this Agreement, i.e. the signing of this Agreement by the last of the Parties.

1.6 **"Commercial Expert"** means the company operating under the business name of CBRE sp. z o.o. with its registered office in Warsaw and, if that company refuses to accept the mandate, then Cushman & Wakefield sp. z o.o., or their respective legal successors.

1.7 **"Environmental Law"** means each and every Law pertaining to environmental, health, safety, or preservation matters and the reclamation of natural resources, or the management, release or threatened release of any Hazardous Materials or to health and safety matters concerning exposure to Hazardous Materials, applicable to or which otherwise pertains to or affects the Lease Subject or the use, ownership, occupancy or operation of the Lease Subject or any portion thereof, including but not limited to:

(a) the act on environmental protection law dated 27 April 2001 (In Polish: *ustawa z dnia 27*

kwietnia 2001 roku - Prawo ochrony środowiska);

(b) the act on waste dated 14 December 2012 (In Polish: *ustawa z dnia 14 grudnia 2012 roku o odpadach*);

(c) the act dated 13 April 2007 on preventing damage to the environment and curing damage (In Polish: *ustawa z dnia 13 kwietnia 2007 roku o zapobieganiu szkodom w środowisku i ich naprawie*);

(d) the act dated 3 October 2008 on making available information on the environment and its protection, the participation of society in the environmental protection and environmental impact assessments (In Polish: *ustawa z dnia 3 października 2008 roku o udostępnianiu informacji o środowisku i jego ochronie, udziale społeczeństwa w ochronie środowiska oraz o ocenach oddziaływania na środowisko*).

1.8 **"Equipment"** means equipment installed in the Property, including installed in the Buildings, being subject of this Agreement and owned by the Landlord, a list of which is attached hereto as **Schedule 1**.

1.9 **"Expiry Date"** means the date on which the Lease expires or terminates.

1.10 **"Guarantor"** means Nivex Topsafe AB (register number 556207-1802).

~~1.10~~1.11 **"Hazardous Materials"** mean any substances that may be hazardous for health, life and/or the natural environment, for example including contaminants and/or pollutants, toxic substances and/or waste, infectious materials, petroleum products, asbestos and/or asbestos-containing materials (except immaterial amounts of ordinary cleaning materials), including in particular substances specified in the Act on Transport of Dangerous Goods of 19 August 2011 (as amended), the European Agreement concerning the International Carriage of Dangerous Goods by Road (ADR) executed in Geneva on 30 September 1957 (as amended), the Environmental Protection Act dated 27 April 2001 (as amended), the Waste Management Act dated 27 April 2001 (as amended), and Law dated 25 February 2011 on Chemical Substances and their mixtures (as amended), any chemicals included in regulations promulgated under the above listed statutes or any modifications thereof or successor statutes thereto or other Law, including any applicable European Union laws, and any explosives, radioactive materials or other chemicals, other than those which are customarily and legally offered for retail sale and chemical cleaning products.

~~1.11~~1.12 **"Law"** means all mandatory and applicable acts of the Polish Parliament, the European Commission, the European Parliament and/or the Council of the European Union, ordinances and other executive orders issued on the basis of acts of the Polish Parliament, the European Commission, the European Parliament and/or the Council of the European Union, mandatory local laws, mandatory technical norms, as well as all administrative decisions issued by governmental entities in respect of the Property, and all court orders or judgements, enforceable within the territory of the Republic of Poland, issued in respect of the Property.

~~1.12~~1.13 **"Lease"** means this Agreement and any schedules and annexes hereto.

1.14 **"Lease Collateral"** means the Parent Company Guarantee.

~~1.13~~1.15 **"Lease Subject"** is defined in Section 2.1.

~~1.14~~1.16 **"Lease Term"** is defined in Section 3.1.

~~1.15~~1.17 **"Operating Expenses"** mean all costs in connection with the right of perpetual usufruct, possession, operation, management, maintenance, retaining the value and insurance of the Property (including the Building, Structures and Equipment), in particular in connection with the services necessary or expedient for the Property (including the Building, Structures and Equipment) operation.

~~1.16~~1.18 **"Utilities"** mean water, liquid gas, electricity, sewage disposal, ventilation, as well as other similar utilities and services as well as rental and/or lease of equipment related to the supply of utilities (if any).

1.19 **"Parent Company Guarantee"** means an unconditional, irrevocable, payable on first demand and freely assignable guarantee (in Polish: *poręczenie*) issued under Polish law by the Guarantor to the Landlord benefit, securing due performance of all obligations of the Tenant resulting from this Agreement, in the amount equivalent to the aggregate of the Rent and Service Charge due for the period of 12 months, increased by VAT, which is valid, effective and enforceable form the date of its issuance, during the entire Lease Term and additionally for 30 (thirty) days after the Expiry Date. A form of the Parent Company Guarantee is attached hereto as **Schedule 2**.

~~1.17~~1.20 **"Permitted Use"** is defined in Section 2.2.

~~1.18~~1.21 **"Property"** means jointly the following real properties located in Tczew: (i) the real property consisting of plot no. 52/11, for which the District Court in Tczew, IV Land and Mortgage Register maintains the land and mortgage register no. GD1T/00034527/2 and (ii) the real property consisting of plot no. 52/56, for which the District Court in Tczew, IV Land and Mortgage Register maintains the land and mortgage register no. GD1T/00038108/7; marked on the plan comprising **Schedule 3** hereto, on which the Buildings and Structures are located.

~~1.19~~1.22 **"Release"** means any spilling, leaking, pumping, pouring, emitting, emptying, discharging, injecting, escaping, leaching, dumping, migrating, presence of, exposure to or disposing into the environment of any Hazardous Materials unless caused by the Landlord, including the abandonment or discarding of barrels, containers, and other closed receptacles containing any Hazardous Materials.

~~1.20~~1.23 **"Rent"** is defined in Section 4.1.

~~1.21~~1.24 **"Service Charge"** means the Landlord's fair and reasonable estimate of the Operating Expenses (to the extent Landlord shall incur such Operating Expenses) for the calendar year, based on estimated market conditions and notified to the Tenant.

~~1.22~~1.25 **"Structures"** means structures construed, built-in on the Property (other than the Buildings), constituting structural elements of the Property or the Buildings, such as an internal road infrastructure, car parks, road exits, infrastructure connections and other technical infrastructure ensuring the use of the Property and the Buildings.

2. Subject of the Lease and the manner of use

2.1 The Landlord hereby leases to the Tenant, for its exclusive use, the Property, including the Buildings, Structures as well as the Equipment ("**Lease Subject**"), and the Tenant accepts the

Lease Subject for lease, subject to provisions of this Agreement.

2.2 The Tenant shall be entitled use the Lease Subject solely for the purpose of conducting business activity in particular consisting of manufacturing and assembly of products for secure storage, such as safes, vaults, doors, strongrooms and similar security products, as well as for the purpose of the storage of finished products as well as components, parts and materials necessary for the production process ("**Permitted Use**").

3. Lease term and delivery

3.1 The Lease shall come into effect upon the Commencement Date and, subject to earlier termination or its prolongations in accordance with Section 3.2, it shall expire after 4 (four) years from the Commencement Date ("**Lease Term**").

3.2 The Lease Term shall be extended for an additional 2 (two) years if the Tenant notifies the Landlord in writing, at least 12 (twelve) months prior to the expiration of the Lease Term, of its intention to extend the Lease Term. In such a case, the Lease shall be extended automatically (i.e., without the need for the Parties to make any further statements of will apart from the aforementioned Tenant's notification) and shall expire upon the expiry of such extended Lease Term, subject to earlier termination in accordance with the provisions of this Agreement. If the Tenant exercises its right to extend Lease Term, the Lease shall be extended on the same terms and conditions as those applicable on the last day of the original Lease Term, subject to the amount of rent indicated in Section 4.1.3. For the avoidance of doubts, the Lease extension applies only once.

3.3 The Lease Subject has already been handed over to the Tenant as the Tenant previously owned the Property. Considering that the Tenant continues the possession of the Lease Subject, under this Agreement, due to the fact that Tenant transferred the ownership right to the Property to the Landlord prior to the Commencement Date, in accordance with article 349 of Civil Code, a separate handover of the Lease Subject to the Tenant is not necessary.

4. Rent

4.1 The Tenant shall pay the Landlord the rent in accordance with the following provisions:

4.1.1 for the period between the Commencement Date and the expiry of 2 years from the Commencement Date – SEK 1.00 (lump-sum amount), payable within 14 (fourteen) days from the Commencement Date;

4.1.2 subject to Section 4.1.3 below, for the period from the beginning of the third year of the Lease Term until the Expiry Date – SEK 250,000 net quarterly,

4.1.3 in the event that the Lease Term is extended pursuant to Section 3.2, for the period from the beginning of the extended Lease Term until the Expiry Date – SEK 500,000 net quarterly,

("**Rent**").

4.2 Any Rent payments applicable to an incomplete month period shall be calculated on a pro rata daily basis.

4.3 The Tenant shall pay the Rent in advance, no later than on the 10th day of the first calendar month of each quarter, i.e. by 10th January, 10th April, 10th July and 10th October. The Landlord

shall issue and deliver to the Tenant every quarter (before the payment term) a VAT invoice documenting the amount of Rent due on the specific quarter. The detailed payment conditions are set out in Section 6.

5. Operating expenses and Utilities. Triple net lease

5.1 The Parties acknowledge and agree that this Agreement has been agreed and entered into for the entire Lease Term (and extended Lease Term pursuant to Section 3.2, if applicable) as the lease under which the Rent was calculated on the assumption that it should constitute a pure income of the Landlord after the Commencement Date (subject only to income tax and other taxes on the Landlord's revenues, payable by the Landlord) and this Agreement is considered as a triple net agreement. All costs, expenses, responsibilities and obligations relating to the condition, use, operation, maintenance, management, repair, restoration and replacement of the Lease Subject shall be paid by the Tenant. The Tenant acknowledges that this Agreement is classified as a triple net agreement. The Tenant shall be also responsible for the maintenance, repairs and replacements of the Lease Subject. For the avoidance of doubt, the Parties agree that repairs and replacement of the Lease Subject shall be understood as following:

5.1.1 "repair" refers to all repairs to the Lease Subject that are necessary to restore the contractual condition of the Lease Subject (as of the Commencement Date) and to correct damages and consequences of aging, weathering, or wear and tear, so that the Lease Subject is maintained in good order and in accordance with Law requirements;

5.1.2 "replacement" refers to the replacement of components of the Lease Subject such as, in particular, Equipment and/or installations. The replacement obligation exists if and to the extent that: (i) components of the Lease Subject are lost, and/or (ii) a repair is technically no longer possible, and/or (iii) the expected repair costs exceed the expected cost of the replacement, and/or (iv) a replacement is necessary based on the Law provisions or manufacturer's recommendations and/or industry expected lifespan, and/or (v) a replacement obligation is established elsewhere in this Agreement.

5.2 The Parties agree that the Operating Expenses, to the widest possible extent, shall be paid directly by the Tenant to service providers, on the basis of agreements executed directly between the Tenant and service providers. The Landlord is not obliged to provide any services to the Tenant and/or Lease Subject, unless this is specifically provided otherwise herein or it is legally or operationally impossible that given service is to be contracted directly by the Tenant. For the avoidance of doubt, the Parties hereby confirm that the Landlord will re-charge the Tenant with the costs referred to above without any margin or add-on.

5.3 Considering that not all Operating Expenses may, for legal, operational or contractual reasons, be covered directly by the Tenant, the Tenant shall be obliged to cover the Operating Expenses incurred by the Landlord by paying the Service Charge. The Tenant shall pay the quarterly advance payments toward the Service Charge in an amount equal to ¼ of the Service Charge estimated for a given calendar year, no later than on the 10th day of the first calendar month of each quarter, i.e. by 10th January, 10th April, 10th July and 10th October. The Landlord shall issue and deliver to the Tenant every quarter (before the payment term) a VAT invoice documenting the amount of advance payment toward the Service Charge due on the specific quarter.

5.4 Each year by 31 March the Landlord shall provide the Tenant with an estimate of the total

Service Charge due in the specific year of the Lease Term or extended Lease Term pursuant to Section 3.2, if applicable (save that the estimate of the Service Charge due in the first year of the Lease Term shall be provided to the Tenant within ~~1~~2 (~~one~~two) months from the Commencement Date at the latest). If the Landlord does not provide an estimate of the Service Charge within the aforementioned term, the Service Charge for the preceding year shall apply. For the avoidance of doubts, the advance payment toward the Service Charge for the first quarter of a calendar year (payable until 10th of January) shall be paid on the basis of the calculation of Service Charge for the preceding year.

5.5 After the end of each year of the Lese Term (or extended Lease Term pursuant to Section 3.2, if applicable, if applicable), not later than until 31st of May of the following year, the Landlord will prepare and submit to the Tenant an annual reconciliation comparing the Operating Expenses paid directly by the Landlord in the preceding calendar year with the total Service Charge paid by the Tenant for that year ("**Annual Reconciliation**"). If the Landlord fails to prepare the Annual Reconciliation in accordance with the provisions above and within the deadline specified therein, the Tenant shall be entitled to withhold any Service Charge payments for the current calendar year, and the Landlord shall have no claims whatsoever arising from or in connection with such withholding.

Should the Tenant find any irregularities in the Annual Reconciliation, within 30 days from the receipt of the Annual Reconciliation, the Tenant shall have a right, together with appointed attorneys (experts), to check, at its own expense, the invoices and other underlying documents concerning the Operating Expenses paid directly by the Landlord in the preceding calendar year, save that the Tenant shall treat (and procure that his attorneys shall treat) all materials which he gained access to as confidential. The Tenant shall be authorised to make copies of documents at his own costs.

If the Tenant points out any inaccuracy in the Annual Reconciliation to the Landlord within the aforementioned 30-days' term (whereby such notice shall include the indication of the inaccuracy together with pointing out irregularities noticed by the Tenant), the Landlord shall notify the Tenant, within 20 (twenty) Business Days, whether he admits such claim. If the Landlord agrees with the Tenant that there is some overpayment, the Landlord shall return the overpaid amount within 5 (five) days of receiving the Tenant's notice. If the Landlord does not agree with the Tenant, the Parties shall embark on good-faith negotiations lasting no more than 5 (five) business days. If the Parties fail to reach a consensus, the dispute shall be referred by the Landlord and/or the Tenant to the Commercial Expert.

The Commercial Expert's opinion shall be binding on the Parties, subject to obvious errors or a fraud. The Landlord shall refund the Tenant the due difference within 5 (five) days of receiving the Commercial Expert's opinion results, subject to previous sentence. The cost of Commercial Expert shall be borne by the Landlord if Tenant's standpoint concerning the Annual Reconciliation was correct, otherwise such cost shall be borne by the Landlord.

5.6 In the event of termination of the Lease during a given calendar year, the Landlord shall send to the Tenant an appropriate reconciliation comparing the Operating Expenses paid directly by the Landlord in the period between the commencement of a given calendar year and the Expiry Date resulting form such termination, within 3 (three) months counted from the end of a calendar month in which the Expiry Date took place.

5.7 If the actual Operating Expenses paid directly by the Landlord for a given calendar year of the Lease Term (or extended Lease Term pursuant to Section 3.2, if applicable):

5.7.1 exceeds the Service Charge paid by the Tenant for that calendar year, then the Tenant shall pay the excess to the Landlord immediately upon the Landlord's request, or

5.7.2 is lower than the Service Charge paid by the Tenant for that calendar year, then the Landlord shall credit the overpayment against any further Service Charge payments or – in the last calendar year of the Lease Term (or extended Lease Term pursuant to Section 3.2, if applicable) - shall reimburse the overpayment to the Tenant within 30 (thirty) days from the settlement of the Operating Expenses.

5.8 The Operating Expenses that shall be reimbursed by the Tenant to the Landlord may particularly consist of (if not paid by the Tenant directly):

5.8.1 public levies that must be, according to the Law, paid directly by the owner of the Property (including the real estate tax and the annual fee for the right of perpetual usufruct of the Property);

5.8.2 charges relating to environmental matters and other Law dues and charges payable or incurred in connection with the Lease Subject or any part thereof;

5.8.3 fees due for the creation or maintenance of any existing easements or easements necessary to be established to the benefit of the Lease Subject on arm's length terms;

5.8.4 premiums and other insurance costs due on the Landlord's insurance;

5.8.5 carrying out any work on the Lease Subject to comply with the Law and/or decisions or as provided in this Agreement (including substitute performance, save that this shall not exclude the Landlord's right to claim any such amount due from the Tenant directly in accordance with the provisions of this Agreement);

5.8.6 VAT in respect of any item of expenditure referred to herein to the extend it is not otherwise recoverable by the Landlord.

5.9 The following costs and expenses shall be excluded from the Operating Expenses and Service Charge payable by the Tenant:

5.9.1 development costs and expenses, such as upgrades, modernizations of the structure or construction elements of the Lease Subject, floors and roofs, roof membrane, walls, columns, car parks, roads and manoeuvring areas, external glazing or systems, such as heating, ventilation, air-condition, sewage, electric power; for the avoidance of doubt, the above exclusion shall not be understood as limiting the Tenant’s obligations with respect to the repairs and replacements as defined under Section 5.1;

5.9.2 other capital expenditures to the Lease Subject increasing its value as a fixed asset;

5.9.3 costs following from the breach by the Landlord of any agreement to which the Landlord is a party, or any Law, excluding the situation where the breach was caused by the Tenant;

5.9.4 costs and expenses related to advertising, promotion, marketing, PR and other similar domains, unless such actions are carried upon prior consent of the Tenant;

5.9.5 costs and expenses involved in the operation of the Landlord as the entity conducting business operations, including accountancy, staffing, overheads or costs and expenses related to the

operation of the Landlord's corporate bodies;

5.9.6 costs and expenses of credit facilities, loans and other financing methods for the Landlord.

5.10 During the Lease Term (or extended Lease Term pursuant to Section 3.2, if applicable), the Tenant agrees to cover the costs of supplying the Utilities to the Property. The costs of Utilities, to the widest possible extent, shall be paid by the Tenant directly to Utilities providers, on the basis of agreements executed directly between the Tenant and Utilities providers.

If conclusion of separate agreements regarding the provision of Utilities directly by the Tenant is not possible, the provision of Utilities will be contracted by the Landlord, provided that the Landlord shall be obliged to conclude Utilities' supply agreements with Utilities' providers on market terms customary for the market relevant to the location of the Property. In such a case, the Tenant shall be obliged to reimburse the Landlord for any costs incurred by the Landlord for the provision of Utilities within 10 (ten) days from the issuance of and delivery to the Tenant a respective VAT invoice or another accounting document by the Landlord (without any margin or add-on), however if any Utilities' supply agreement concluded by the Landlord does not comply with such market terms, the Tenant shall be obliged to reimburse the Landlord only up to the amount corresponding to market-standard utility charges payable for such utilities in accordance with the foregoing.

5.11 The Landlord acknowledges and agrees that the Tenant may enter into agreements for any of the services or the Utilities or continue exercising such agreements if concluded by the Tenant as a previous owner of the Property, without the Landlord's prior written consent.

5.12 The Landlord shall be not liable for any interruptions or malfunctions of such services and Utilities described above contracted directly by the Tenant and any disruptions in the provision of supply of such Utilities will not be treated as disruptions in the use and possession of the Lese Subject by the Tenant, and the Tenant shall not have a right to any discount or suspension of payment of the Rent or any other payments under this Agreement for this reason, or to terminate this agreement due to such disruption.

6. General payment conditions

6.1 All payments due from the Tenant under this Agreement will be performed in accordance with the general terms and conditions of this Section and as further provided in this Agreement.

6.2 All the payments indicated in this Agreement are net of VAT and/or any other due taxes and will be increased by VAT and taxes (if applicable) in the given invoices. In the case of any amounts payable under this Agreement in a currency other than PLN, VAT shall always be paid in PLN.

6.3 The Tenant will make all payments in accordance with invoices (or other appropriate accounting documents, if the Agreement so provides) issued by the Landlord. Payments will be made to the Landlord’s bank account set out in the relevant invoice and/or another accounting document. The date of payment shall be the date on which the Tenant issues the payment instruction in the appropriate amount of money. Without the prejudice to other provisions of this Agreement, the Tenant shall be authorised to withhold payment of Rent or Service Charge to the Landlord if the following conditions are not fulfilled (until such conditions are fulfilled):

6.3.1 the Landlord is registered as an active VAT payer;

6.3.2 the Landlord's bank account indicated in the VAT invoice is disclosed in the register referred to in Article 96b paragraph 1 of the Value Added Tax Act of 11 March 2004, as amended (so called whitelist of VAT taxpayers) of the relevant tax administration.

The deadline for payment of VAT invoices does not run until the Landlord regains the status of an active VAT payer, save that the Tenant informed the Landlord in writing about occurrence of one of the circumstances that prevent the payment by the Tenant. The Landlord undertakes to indicate on his invoices the bank account referred to in Article 96b paragraph 3 item 13 of the Value Added Tax Act of 11 March 2004, as amended.

6.4 Any invoices or other accounting documents under this Agreement may be delivered to the Tenant by electronic means to the e-mail address indicated in Section 1~~7~~8. The Tenant hereby agrees to receive invoices in electronic form. The Tenant is obliged to immediately inform the Landlord of any change in the above-mentioned e-mail address for delivering invoices to the Landlord's e-mail address indicated in Section 1~~7~~8. Changing the Tenant's e-mail address for delivering invoices does not constitute an amendment to this Agreement and therefore does not require an appendix and/or agreement to this Agreement. Tenant hereby accepts that the invoices will be issued and delivered without the Landlord's signature.

7. Lease Collateral

7.1 The Tenant shall, within 7 (seven) days following the Commencement Date, provide the Landlord with the Parent Company Guarantee.

7.2 If the delay in the performance of the Tenant's payment obligations exceeds 1 (one) month, and the Tenant has not paid the overdue payments within the additional deadline – not shorter than 14 (fourteen) days - set by the Landlord in a separate written request, the Landlord will be entitled to satisfy his claims against the Tenant under this Agreement through the use the Parent Company Guarantee (i.e., the Landlord will be entitled to direct its claim for payment of the outstanding amount directly to the Guarantor under the Parent Company Guarantee). Furthermore, if the Tenant breaches any other of its obligations under this Agreement and this breach is not remedied within 1 (one) month deadline set by the Landlord in a written request, the Landlord shall be entitled to use the Parent Company Guarantee, in the manner described above, to cover any payments due from the Tenant, including losses and expenses resulting from and/or connected with the breach.

Notwithstanding the provisions above, if the Tenant breaches its obligations under this Agreement relating to the obligation to restore the Lease Subject, upon the expiry or termination of the Lease, to the condition required under this Agreement, the Landlord shall be entitled to invoke and use the Parent Company Guarantee, in the manner described above, to satisfy any claims it may have against the Tenant arising from the non-performance or improper performance of such obligations (including to cover the costs referred to in Section **Fel! Hittar inte referenskälla.**).

7.3 Following the lapse of 30 (thirty) days from the Expiry Date, and subject to satisfaction of all Tenant's obligations hereunder, the Landlord shall return to the Tenant (or directly to the Guarantor) the original of Parent Company Guarantee.

7.4 In the event that the Lease Term is extended in accordance with Section 3.2, the Tenant shall

be obliged to provide the Landlord with a new Parent Company Guarantee reflecting the extended Lease Term (unless the original Parent Company Guarantee already reflected such extended Lease Term), no later than 1 (one) month prior to the expiry of the original Lease Term.

~~7.~~8. Repairs and maintenance

~~7.1~~8.1 Throughout the Lease Term (and the extended Lease Term in accordance with Section 3.2, if applicable), Tenant, at its sole cost and expense, will keep the Lease Subject in no worse state of repair and condition than the Lease Subject was at the Commencement Date, subject to normal wear and tear, including carrying out the ongoing maintenance of the Lease Subject.

~~7.2~~8.2 The Tenant will not take or omit to take any action the taking or omission of which would reasonably be expected to:

~~7.2.1~~8.2.1 create (or permit to continue) any dangerous condition to human health or life, or

~~7.2.2~~8.2.2 create (or permit to continue) any condition which might reasonably be expected to involve any loss, damage or injury to any person or property.

~~8.~~9. Alterations

~~8.1~~9.1 Subject to the provisions of Section ~~8~~9.2, the Tenant is entitled to make the Alterations in the Lease Subject without the Landlord's consent.

~~8.2~~9.2 The Landlord's prior written consent is required for any Alterations that may:

~~8.2.1~~9.2.1 adversely interfere with the structure of the Buildings and/or with the installations located on the Property (including those within the Buildings); and/or

~~8.2.2~~9.2.2 adversely affect the proper operation of systems protecting life, health or property, including fire protection systems.

~~8.3~~9.3 The Alterations referred to in Section ~~8~~9.2 shall be performed on the basis of the executive designs and other construction documentation required by Law, prepared at the Tenant's request, risk and cost and approved by the Landlord prior to the commencement of any construction works.

~~8.4~~9.4 Any Alterations shall be carried out in compliance with the applicable Law and after obtaining the required permits or making the required notifications (if and to the extent they are required by the provisions of Law). Tenant shall be exclusively responsible for obtaining all permits or make all notifications required by Law which are necessary to conduct the Alterations, before the start of the Alterations.

~~8.5~~9.5 All costs related to obtaining the construction documentation, permits and making notifications referred to in above shall be borne by the Tenant. If the Landlord is charged with such costs for any reason, the Tenant shall reimburse them to the Landlord promptly, yet no later than within 7 (seven) days of receipt of the Landlord's written request for reimbursement of such costs.

~~8.6~~9.6 The Tenant shall provide the Landlord with copies of relevant decisions and/or notifications related to the Alterations promptly after submitting or receiving them (respectively).

~~8.7~~9.7 The Tenant shall be obliged to notify the Landlord of the completion of the Alterations not later than 14 (fourteen) days following their completion.

~~8.8~~9.8 The Tenant and the Landlord hereby expressly agree that the Tenant is authorised to depreciate, from the Commencement Date and until the Expiry Date, all structural modifications and/or changes of a permanent character to the Lease Subject (which constitute technical improvements to the Lease Subject) made by the Tenant in accordance with this Agreement. For this purpose, at every Tenant's request, the Landlord will issue a written confirmation - within 7 (seven) days from receipt of the Tenant's request - that the costs relating to the Alteration will not be depreciated by the Landlord and may be depreciated by the Tenant.

~~9.~~10. Other obligations of the Tenant

~~9.1~~10.1 The Tenant undertakes to:

~~9.1.1~~10.1.1 use the Lease Subject in a careful, safe and proper manner and only for their Permitted Use, in accordance with their designation and in accordance with this Agreement, and in accordance with any permits and the relevant Law. In particular, the Tenant shall not use or occupy the Lease Subject, or any part thereof, nor permit or allow the Lease Subject or any part thereof to be used or occupied:

(a) for any purpose or in any manner which is in violation of Permitted Use or any Law;

(b) in any manner which makes void or voidable any insurance then in force with respect thereto as is required pursuant to Section 1~~1~~2;

(c) in any manner which might impair Landlord's title thereto or to any portion thereof (provided, however, that Tenant will be entitled to encumber its own property brought into the Lease Subject, including movables, not being owned by the Landlord and not being a part of Lease Subject);

(d) in a way making possible a claim of adverse use or possession of Lease Subject (in particular in breach of occupancy permit of the Buildings) or any portion of the Lease Subject;

(e) may subject the Lease Subject to any encumbrances;

~~9.1.2~~10.1.2 notify the Landlord immediately (such notification shall include all relevant information and documents as to the event occurred), within 5 (five) days of the above events occurring, of:

(a) the filing any motion for insolvency, winding-up and/or liquidation proceedings against the Tenant, and of their occurrence with respect to the Tenant;

(b) any changes to the registration of the Tenant in the National Court Register in respect of the Tenant's address and registered office;

(c) any damage to the Lease Subject;

(d) any accident occurred in the Lease Subject;

(e) any notices from authorities regarding the Lease Subject received by the Tenant;

(f) any third-party claims that could concern and/or affect the Landlord and/or the Lease Subject;

(g) all claims related to insurance of the Lease Subject;

~~9.1.3~~10.1.3 provide the Landlord, at his request, with the name and mobile telephone number of at least 1 (one) representative of the Tenant who can be contacted by the Landlord 24 (twenty-four) hours a day;

~~9.1.4~~10.1.4 reimburse any losses incurred by the Landlord, and other persons acting on its behalf, its guests and/or third parties in respect of any injury, accident, loss and/or damage whatsoever to person and/or property, to the extent they result from the Tenant's not performing and/or improperly performing its obligations hereunder and/or otherwise breaching the Law, and to indemnify and hold the Landlord's harmless from any liability arising from such circumstances;

~~9.1.5~~10.1.5 provide the Landlord, at his request and/or immediately after completion, with all test and inspection reports, approvals and/or certificates (e.g. technical inspections, fire safety approvals, etc.) of devices, equipment, systems, installations, etc. installed and/or used by the Tenant in the Lease Subject and requiring periodic checks and/or inspections in accordance with separate regulations such as fire, health and safety, environmental protection regulations, etc.

~~9.2~~10.2 Tenant will remain liable for acts and omissions of its employees, contracting parties, other persons acting on its behalf and/or at its instruction, and its guests, as for its own acts and omissions for all purposes of this Agreement.

~~9.3~~10.3 Tenant shall, at its sole cost and expense, use and maintain the Lease Subject in compliance with Law, and Tenant shall, at its sole cost and expense, comply with all Laws applicable to or having jurisdiction over the location of the Lease Subject, including without limitation, all Environmental Law and those which require the making of any structural, unforeseen or extraordinary changes and including those which involve a change of policy on the part of the governmental body enacting the same.

~~9.4~~10.4 Tenant shall obtain (if not obtained before the Commencement Date) and maintain during the Lease Term (and extended Lease Term pursuant to Section 3.2, if applicable) any and all permits necessary for occupation, use, proper maintenance of the Lease Subject.

~~9.5~~10.5 Tenant, at its sole expense, shall comply with the requirements of policies of insurance coverage at any time in force with respect to the Lease Subject as required pursuant to Section 1~~1~~2 hereof.

~~10.~~11. Hazardous materials

~~10.1~~11.1 The Tenant covenants and agrees that it shall not cause, conduct, authorize or allow:

~~10.1.1~~11.1.1 the presence, generation, transportation, storage, treatment, or usage at the Lease Subject, or any portion thereof, of any Hazardous Material in violation of or as would give rise to liability under Environmental Law; or

~~10.1.2~~11.1.2 a Release or threat of Release of any Hazardous Material on, under, about or in the Lease Subject; or

~~10.1.3~~11.1.3 any violation of or liability under any Environmental Law at or with respect to the Lease Subject or activities conducted thereon.

~~10.2~~11.2 For avoidance of doubt, nothing in this Section 1~~0~~1 shall prohibit Tenant from using at the Lease Subject: (i) cleaning materials, pesticides, and other common household and office products, and/or (ii) materials in connection with any fuel tanks, generators or the like on the Lease Subject, solely to the extent, with respect to each of the preceding clauses, and/or (iii) other chemical material that will be necessary for the Tenant's performance of the Permitted Use (in particular, manufacturing operations referred to in Section 2.2.

~~10.3~~11.3 Tenant shall, at its own cost, comply and ensure that the Lease Subject and all operations and activities at the Lease Subject comply with all Environmental Laws and the terms of this Agreement with respect to Hazardous Materials, including without limitation all land use restrictions, institutional and engineering controls that have been recorded or put in place in connection with any historical remedial actions at the Lease Subject (provided that all documents evidencing such land use restrictions and/or institutional and engineering controls have been provided to the Tenant). Tenant shall, at its own cost, obtain all permits, licenses and authorizations required under Environmental Law for the operations and activities conducted by the Tenant at the Lease Subject.

~~10.4~~11.4 Tenant shall promptly provide Landlord with a written notice of any actual or potential violation of Environmental Law, any Release of Hazardous Materials in or around the Lease Subject that could impact the Lease Subject or require any investigation, remediation or other response action under any Environmental Law, and any claim or threat of a claim asserting or alleging any liability under any Environmental Law relating to the Lease Subject, and copies of all reports, site assessments, and material communications, permits or agreements to, from or with any governmental authority or other third party relating to such violation, Release or claim.

~~10.5~~11.5 Landlord and Landlord's representatives, including such environmental consultants (costs of which shall be incurred by the Tenant in the Operating Expenses) as Landlord may designate, shall have the right upon reasonable prior notice, to enter the Lease Subject and/or conduct appropriate tests and investigations for the purpose of assessing the condition of Lease Subject or ascertaining that Tenant complies with the terms of this Agreement and with all applicable Environmental Laws that relate in any way to the Lease Subject (provided that such inspection carried out by the Landlord and/or designated persons does not affect the Tenant's operation in the Lease Subject).

~~10.6~~11.6 If the presence, Release, threat of Release, placement on, in or around the Lease Subject, or the generation, transportation, storage, use, treatment, or disposal at or around the Lease Subject of any Hazardous Material by Tenant, Tenant's representatives, or by any third party other than Landlord (for whose actions and/or omissions the Tenant is liable):

~~10.6.1~~11.6.1 gives rise to any Tenant liability or Tenant obligation (including, but not limited to, any investigatory, remedial, removal, reporting, or other response action) under any Environmental Law or similar Landlord's liability or obligation;

~~10.6.2~~11.6.2 causes or threatens to cause any adverse effect on public health or occupational safety and health;

~~10.6.3~~11.6.3 pollutes or threatens to pollute the environment, or endanger human health, or

~~10.6.4~~11.6.4 otherwise violates Environmental Law,

the Tenant shall promptly take (at its sole cost) any and all remedial and removal actions required by Environmental Law or otherwise necessary to clean up the Lease Subject to comply with all environmental standards applicable to the Lease Subject given its use at the time of the remediation and mitigate exposure to liability arising from the Hazardous Material.

~~10.7~~11.7 Tenant shall promptly notify Landlord upon Tenant becoming aware of:

~~10.7.1~~11.7.1 any enforcement action, investigation, cleanup, notice of violation, or other regulatory action taken or threatened against either Party or otherwise related to the Lease Subject by any governmental authority with respect to the presence of any Hazardous Material at Lease Subject, or the migration thereof from or to other property,

~~10.7.2~~11.7.2 any demands or claims made or threatened by any governmental authority or other person against either Party or otherwise relating to any actual or alleged violation of liability under Environmental Law or relating to any loss or injury resulting from any Hazardous Material or based on Environmental Law,

~~10.7.3~~11.7.3 any Release of Hazardous Materials, unlawful discharge, or non-routine, improper or unlawful disposal or transportation of any Hazardous Material on or from the Lease Subject, and

~~10.7.4~~11.7.4 any matters where Tenant is required by Environmental Law to give a notice to any governmental authority respecting any Hazardous Materials in, at, on, under or about the Lease Subject, and Tenant shall thereafter keep Landlord reasonably apprised with respect to the status and Tenant's actions to resolve such matters, and shall furnish Landlord with such other documents and information as Landlord may reasonably request with respect thereto. At such times as Landlord may reasonably request, Tenant shall provide Landlord with a written list identifying any Hazardous Material then actually known by Tenant to be used, stored, or maintained in, on or upon the Lease Subject. In such case, Tenant shall if requested by Landlord provide Landlord with information with respect to the use and approximate quantity of each such material, written information concerning the removal, transportation, and disposal of the same, and such other information as the Landlord may reasonably require or as may be required by Environmental Law.

~~10.8~~11.8 The Tenant shall indemnify, defend and hold Landlord harmless, from and against any and all liability, claim, expense, cause of action, fines, judgments, settlements, investigation, monitoring and remediation costs, penalties, losses (including reasonable attorney's, consultant's and contractor's fees) resulting or arising from:

~~10.8.1~~11.8.1 the breach by Tenant of its covenants and obligations set forth in this Section 1~~0~~1;

~~10.8.2~~11.8.2 the: (i) presence, Release, placement on, in or around the Lease Subject, or (ii) the generation, transportation, storage, use, treatment or disposal at or around the Lease Property of any Hazardous Materials during the Lease Term (and extended Lease Term pursuant to Section 3.2, if applicable), by Tenant or any third party for whose actions and/or omissions the Tenant is liable;

~~10.8.3~~11.8.3 any violation of obligation under Environmental Law or this Agreement during the Lease Term (and the extended Lease Term pursuant to Section 3.2, if applicable), by Tenant or any

third party for whose actions and/or omissions the Tenant is liable.

~~10.9~~11.9 Without limitation to the foregoing, Tenant shall, at its sole cost and expense, be in material compliance with all Environmental Laws relating to the operation and use of the Lease Subject.

~~11.~~12. Insurance

~~11.1~~12.1 Throughout the Lease Term (and the extended Lease Term pursuant to Section 3.2, if applicable) the Landlord shall hold all-risk property insurance for the whole replacement value of the Lease Subject (including loss of rent insurance, at the Landlord's sole discretion). The costs of the insurance referred to in the preceding sentence shall be covered by the Tenant within Operating Expenses, in accordance with the provisions of Section 5.3 et seq.

~~11.2~~12.2 The Tenant is authorised (before the Landlord enters into any property insurance for the Lease Subject) to provide the Landlord with the offers of reputable insurers to insure the Lease Subject, and in case if the terms of insurance policies in accordance with the respective offers will be competitive with respect to the offer obtained by the Landlord, the Landlord will consider entering into property insurance with the insurer indicated by the Tenant.

~~12.~~13. Assignment and sublease

~~12.1~~13.1 The Tenant shall not take any of the following actions without the Landlord's prior written consent, which consent may be granted or withheld in Landlord's sole discretion:

~~12.1.1~~13.1.1 assign this Agreement to any third party, except for situations in which the assignment is made to an entity, that, together with the Tenant, belongs to the same capital group within the meaning of Article 3 section 1 point 44) of the Polish Act of 29 September 1994 on Accounting;

~~12.1.2~~13.1.2 sublease the Lease Subject or any part thereof to any third party, except for situations in which such sublease is made to an entity, that, together with the Tenant, belongs to the same capital group within the meaning of Article 3 section 1 point 44) of the Polish Act of 29 September 1994 on Accounting.

~~12.2~~13.2 In the event the Tenant enters into a sublease agreement concerning the Lease Subject or any part thereof (with the Landlord's consent, or without such consent where it is not required pursuant to Section 1~~2~~3.1.2), the Tenant shall be liable for all acts and omissions of the subtenant as if they were the Tenant's own acts and omissions.

~~13.~~14. Termination of the Agreement

~~13.1~~14.1 The Landlord shall be entitled to terminate this Agreement with immediate effect in any of the following events:

~~13.1.1~~14.1.1 the Tenant is in default with payment of any amount due pursuant to this Agreement for a period exceeding 2 (two) full payment periods and, despite a written notice from the Landlord giving the Tenant additional 14 (fourteen) days to pay the outstandings, the Tenant fails to pay the outstandings;

~~13.1.2~~14.1.2 the Tenant uses the Lease Subject for the purposes other than the Permitted Use, and/or uses the Lease Subject contrary to their purpose and/or the provisions of this Agreement and does not cease the above, despite the Landlord's written notice and ineffective lapse of 14 (fourteen) days period since the day of receipt of such notice;

~~13.1.3~~14.1.3 the Tenant assigns the Agreement or subleases the Lease Subject (or any part thereof) in breach of the provisions of Section 1~~2~~3;

14.1.4 the Tenant fails to provide the Landlord with the Parent Company Guaratee within the term referred to in Section 7.1 and despite a written notice from the Landlord or fails to provide the Landlord with the new Parent Company Guarantee within the term referred to in Section 7.4;

~~13.1.4~~14.1.5 the Tenant causes damage to the Lease Subject and fails to remedy any such damage within a period of 1 (one) month from receiving a written notice from the Landlord;

~~13.1.5~~14.1.6 the Tenant is subject to (compulsory or voluntary) liquidation or there are reasons to declare the Tenant bankrupt or institute restructuring proceedings (of any kind) with respect to it;

~~13.1.6~~14.1.7 the Tenant carries out the Alterations referred to in Section ~~8~~9.2, without the Landlord's prior written consent.

~~13.2~~14.2 Without prejudice to any rights to which the Tenant is entitled under applicable Law or this Agreement, the Tenant shall be entitled to terminate this Agreement with immediate effect in any of the following events:

~~13.2.1~~14.2.1 the Landlord, or any third parties under Landlord's control, interfere with the Tenant's Permitted Use and/or its operation referred to in Section 2.2;

~~13.2.2~~14.2.2 the Tenant is unable to legally conduct its operation on the Property, including, in particular, the operations referred to in Section 2.2;

~~13.2.3~~14.2.3 the Tenant's access to the Property is hindered or prevented and this is not remedied within 1 (one) day from receiving a notice from the Tenant;

~~13.2.4~~14.2.4 the Landlord does not grant its consent for the Alterations referred to in Section ~~8~~9.2, where such Alterations are necessary for the Tenant's operation referred to in Section 2.2;

~~13.2.5~~14.2.5 the Landlord becomes insolvent, is places in restructuring or bankruptcy, or otherwise cannot perform its obligations;

~~13.2.6~~14.2.6 the Landlord fails to provide or maintain, throughout the Lease Term (and the extended Lease Term pursuant to Section 3.2, if applicable), the insurance coverage of the Property in accordance with the provisions of Section 1~~1~~2;

~~13.2.7~~14.2.7 the Landlord is in breach of any other its material obligations under this Agreement, and fails to remedy any such breach, insofar as it may be possible to remedy it, within a period of 14 (fourteen) days from receiving a notice from the Tenant, unless – due to the nature of the breach – a shorter cure period is justified.

~~13.3~~14.3 Notwithstanding the above, the Tenant shall also be entitled to terminate the Agreement with immediate effect in the event that the Tenant's management decides that the continued operation of Tenant on the Lease Subject is no longer justified. However, if the right of termination referred to in this Section is exercised by the Tenant prior to 31 December 2029, the Tenant shall be obliged to pay to the Landlord a contractual penalty in the amount of SEK ~~1~~2,000,000.00. For the avoidance of doubt, after 31 December 2029 the Landlord's right to demand the aforementioned contractual penalty expires; however, this shall be without

prejudice to the Tenant's right to terminate this Agreement in accordance with the provisions of this Section.

~~13.4~~14.4 The right of termination of either Party shall be exercised by means of a written statement bearing a notarized signature (or signatures).

~~14.~~15. Return of the Lease Subject

~~14.1~~15.1 At the latest on the Expiry Date, the Tenant shall be obliged to vacate the Lease Subject, remove all its property (including movables) from the Lease Subject and restore and clean the Lease Subject to the condition as on the Commencement Date, subject to normal wear and tear.

~~14.2~~15.2 If the Tenant fails to restore the Lease Subject, at the latest on the Expiry Date, in accordance with 1~~4~~5.1, the Landlord shall be entitled, at its discretion, to carry out restoration work, and all costs incurred as a result thereof will be reimbursed by the Tenant to the Landlord. If the Tenant fails to remove its property from the Lease Subject at the latest on the Expiry Date, the Landlord may remove the same from the Lease Subject and order that the property be stored at the risk and cost of the Tenant.

~~14.3~~15.3 Under no circumstances will the Tenant retaining possession of the Lease Subject (or any part thereof) after the Expiry Date be understood as the tacit consent of the Landlord to extend the lease under this agreement on the basis of Article 674 of the Civil Code.

~~15.~~16. Casualty damage

~~15.1~~16.1 In an event of casualty, which makes the Lease Subject and/or a substantial part thereof (i.e. more than ~~3~~50%) unsuitable for the Permitted Use, provisions of this Section 1~~5~~6 shall apply.

~~15.2~~16.2 The Landlord will notify the Tenant, in writing, within 7 (seven) Business Days from the occurrence of the event referred to in Section 1~~5~~6.1 that:

~~15.2.1~~16.2.1 the Landlord does not intend to restore the Lease Subject to a condition that would make it possible for the Tenant to use it in accordance with the provisions of this Agreement and/or continue this Agreement;

and in this case, the Parties agree that this Agreement will terminate immediately and automatically (i.e., without the need to make any separate statements of will by the Parties), with the effect from the date on which the event referred to in Section 1~~5~~6.1; or

~~15.2.2~~16.2.2 the Landlord intends to restore the Lease Subject to a condition that will make it possible for the Tenant to use them in accordance with the provisions of this Agreement and to continue the Agreement;

and in this case, the Tenant will only have the right to terminate this Agreement with immediate effect on the basis of a written notice delivered to the Landlord within 20 (twenty) Business Days from the date of the receipt of the Landlord's notice, if the deadline planned by the Landlord for handing over the Lease Subject fits for the Tenant's Permitted Use:

(a) is longer than ~~6 (six~~12 (twelve) months; or

(b) falls in the period of the last 12 (twelve) months of the Lease Term (and/or extended

Lease Term, in accordance with Section 3.2, if applicable).

~~15.3~~16.3 If an event of casualty that makes the Lease Subject fully and/or partially unsuitable for use, the Tenant will not be required to pay the Rent and any other charges resulting from this Agreement, including the Service Charge, for the part of the Lease Subject that cannot be used as a result of an event of casualty, starting from the day on which the event referred to in Section 1~~5~~6.1 occurred, until the day on which the Lease Subject fits for the Permitted Use.

~~15.4~~16.4 The Tenant will nonetheless be required to pay the entire Rent and the Service Charges, as well as all other amounts due under this Agreement if the Lease Subject became fully and/or partially unsuitable for use due to the reasons caused by the Tenant, its employees, contracting parties, and/or other persons for whom the Tenant is liable pursuant to this Agreement.

~~16.~~17. Signage

~~16.1~~17.1 The Tenant shall be entitled to install and maintain throughout the Lease Term (and/or extended Lease Term, in accordance with Section 3.2, if applicable) its signage on the exterior of the Lease Subject (in particular on the facades of the Buildings), without a prior written consent of Landlord and without any additional charges, save for the installation and maintenance costs of the signage, all of which shall be borne exclusively by the Tenant.

~~16.2~~17.2 Tenant shall be responsible for any damage caused to the Lease Subject by the erection or maintenance on the Lease Subject of said signage, and any damage so caused shall be repaired promptly at Tenant's sole cost and expense.

~~17.~~18. Notifications

~~17.1~~18.1 Any notice under this Agreement shall be made in writing (unless the Agreement provides otherwise) and delivered in person, by registered mail or a courier, to the addresses indicated below or other addresses (in Poland) which the Parties may indicate by way of notice made in accordance with this Section, unless the Parties have expressly specified hereunder that communication may be by email.

~~17.1.1~~18.1.1 Tenant: as indicated in the introductory provisions, e-mail: axel@nivextopsafe.se, niklas@profsafe.se

~~17.1.2~~18.1.2 Landlord: as indicated in the introductory provisions, e-mail: jacob.hallgren@topontop.se

~~17.2~~18.2 If delivery has not been confirmed by the recipient, correspondence sent by registered mail or courier shall be deemed to have been delivered on the third Business Day following its posting (the date of the postmark/sending a courier being decisive), unless the Party proves that it received the correspondence on a different date.

~~17.3~~18.3 The other Party to the Agreement shall be notified of every change of address pursuant to this Section. In case of failure to send a new address, any correspondence sent to the previous address known to the Party shall be regarded as properly delivered.

~~18.~~19. Miscellaneous provisions

~~18.1~~19.1 Disclosure of the Agreement in the Land and Mortgage Registers maintained for the Property

The Landlord hereby consents to the disclosure of this Agreement in the Land and Mortgage Registers kept for the Property.

~~18.2~~19.2 Form of the Agreement. Amendments

This Agreement has been executed in a written form with signatures notarized by a notary. Any amendment and/or supplementation of this Agreement must be made in the same form to be valid.

~~18.3~~19.3 No tacit waiver of rights

Unless this Agreement provides for a specific deadline to exercise a given right, any delay and/or failure by a Party to exercise any right under this Agreement will not constitute a waiver of that right. The rights of either of the Parties under this Agreement may only be specifically waived in writing.

~~18.4~~19.4 Severability

If any provision of this Agreement and/or the application of any provision hereof to any Party hereto proves invalid, ineffective and/or unenforceable, this Agreement will remain valid, effective and enforceable and the Parties will make their best efforts, acting in good faith, to substitute the invalid, ineffective and/or unenforceable provision with a valid, effective and enforceable one reflecting the Parties' intentions to the highest extent.

~~18.5~~19.5 Dispute resolution

All disputes arising out of and/or relating to this Agreement will be finally settled by the court with jurisdiction over the Tenant's registered office.

~~18.6~~19.6 Confidentiality

~~18.6.1~~19.6.1 The Parties will maintain the confidentiality of all information obtained from the other Party during the negotiation and operation of this Agreement and its terms and conditions. Providing the confidential information to: (i) banks and/or financial institutions that have extended and/or are considering extending a loan to the Landlord for the purpose of financing its business, (ii) potential purchasers of the Property and/or its part, as well as (iii) business (commercial), legal, technical and/or tax advisors, etc. of banks, financial institutions and/or potential buyers, and (iv) auditors of the Parties, (v) entities providing real estate valuation and auditing services (including commercial, legal, technical and/or tax and financial) and (vi) potential future tenants, will not be deemed a breach of the above provision.

Furthermore, the Parties may disclose confidential information to their affiliates, as well as to legal, tax, insurance, technical and business advisors. Any disclosure to any of the above third parties may only be made under the condition that the third party is bound by a confidentiality undertaking and that the disclosing party will be liable for the third-party breach of confidentiality as for its own breach. This confidentiality clause remains in force after the expiry of this Agreement.

~~18.6.2~~19.6.2 Except for any announcement intended solely for internal distribution by Landlord or Tenant or any disclosure required by legal, accounting or regulatory requirements beyond the reasonable control of the disclosing party, all media releases or public announcements

(including, but not limited to, promotional or marketing material) by Landlord or Tenant or either Party's employees or agents relating to this Agreement or its subject matter, or including the name, trade name, trade mark, or symbol of Tenant or an affiliate of Tenant, or Landlord or an affiliate of Landlord, shall be coordinated with and approved in writing by the other party prior to the release thereof; provided, that nothing herein is intended to require Tenant's consent to the identification of Tenant or the particulars of this Agreement in connection with any marketing of the Lease Subject or any portion thereof by Landlord.

~~18.7~~19.7 Counterparts

This Agreement is executed in two counterparts, one for each Party.

~~18.8~~19.8 Governing Law

This Agreement is governed by the laws of Poland.

~~18.9~~19.9 Schedules

The following schedules to this Agreement constitutes its integral part:

(a) Schedule 1 – List of Equipment;

(b) Schedule 2 – Form of the Parent Company Guarantee;

~~(b)~~(c) **Schedule 3** – Plan of the Property.

Execution Page

Landlord

_____

Jacob Hallgren

_____

Lars Hallgren

Tenant

_____

Axel Hallgren

_____

Niklas Natt och Dag

/SIGNATURES OF THE PARTIES NOTARIZED BY THE NOTARY/

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+574 ord tillagda

–25 ord borttagna

9204 ord oförändrade

Legend

Tillagd text — text som finns i det modifierade dokumentet men inte i originalet.

~~Borttagen text~~ — text som finns i originalet men inte i det modifierade dokumentet.

Oförändrad text — text som är identisk i båda dokumenten.

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